

25STCV15579 25STCV15579

County: los-angeles

Division: Civil Law and Motion

Department: 513

Hearing date: 2026-08-24

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C513%2C08%2F24%2F2026

Source SHA-256: e7c83e1894e313195d8eafbb49994fe4a7aecb063ea8b57d80c29c3f464844e1

Case Number: 25STCV15579 Hearing Date: August 24, 2026 Dept: 513

Superior

Court of California

County

of Los Angeles – Central District

Department 513

Mark Benedetti

, et al.;

Plaintiffs,

vs.

General Motors, LLC

;

Defendant.

Case No.:

25STCV15579

Hearing Date:

August 24, 2026

Time:

10:00 a.m.

[Tentative] Order RE:

Demurrer
to First Amended Complaint

MOVING PARTY: Defendant General Motors, LLC

RESPONDING

PARTY: Plaintiffs Mark Benedetti and Benedetti, LP

Demurrer to First
Amended Complaint

The court considered the moving,
opposition, and reply papers filed in connection with this motion.

DISCUSSION

Defendant General
Motors, LLC ("Defendant") demurs to the First Amended Complaint filed by
plaintiffs Mark Benedetti and Benedetti, LP ("Plaintiffs") as to the fourth
cause of action for breach of implied warranty and fifth cause of action for
fraudulent concealment.

The court
sustains the demurrer as to the fourth cause of action for breach of implied
warranty because the four-year statute of limitations has run. (Code Civ.
Proc., § 430.10, subd. (e).)

Implied warranty
claims are also subject to a four-year statute of limitations. (Comm. Code, §
2725; *Montoya v. Ford Motor Co.* (2020) 46 Cal.App.5th 493, 495.) Under
subdivision (b) of section 2725 of the Commercial Code, a breach of warranty
occurs—and thus, a claim accrues—"when tender of delivery is made, except that

where a warranty explicitly extends to future performance of the goods and discovery of the breach must await the time of such performance[.] the cause of action accrues when the breach is or should have been discovered." (Comm. Code, § 2725, subd. (b).) Unlike express warranty claims, an implied warranty does not "explicitly extend to future performance of the goods." (Cardinal Health 301, Inc. v. Tyco Elecs. Corp. (2008) 169 Cal.App.4th 116, 134.) Plaintiffs allege entry into a warranty contract on May 7, 2021. (Complaint ¶ 7.) Thus, to be timely, the deadline to file the original Complaint was May 7, 2025. The Complaint was instead filed May 29, 2025, 22 days after the deadline. The fourth cause of action is therefore time-barred.

The court overrules the demurrer as to the fifth cause of action for fraudulent concealment because Plaintiffs have adequately alleged a delayed accrual of their fraud claim.

Code of Civil

Procedure section 338(d) states that a party has three years to bring an action for relief on the ground of fraud or mistake, and that "[t]he cause of action in that case is not deemed to have accrued until the discovery, by the aggrieved party, of the facts constituting the fraud or mistake." (Code Civ. Proc., § 338, subd. (d) [emphasis added].) The pleadings allege that the defect persisted despite repair attempts. (FAC ¶ 37.) The pleadings also allege that Defendant issued numerous Technical Service Bulletins which purported to address the vehicle's symptoms but attributed the source to other causes. (FAC ¶¶ 47-48.) The pleadings allege that these TSBs misdirected consumers and prevented discovery of the defects. (Id.) Construed favorably, as required on demurrer, these allegations are sufficient to invoke the delayed discovery rule.

The burden is on the plaintiff "to articulate how it could amend its pleading to render it sufficient." (Palm Springs Villas II Homeowners Assn., Inc. v. Parth (2016) 248 Cal.App.4th 268, 290.) To satisfy that burden, a plaintiff "must show in what manner he can amend his complaint and how that amendment will change the legal effect of his pleading." (Goodman v. Kennedy (1976) 18 Cal.3d 335, 349.) The court finds that Plaintiffs has not articulated the facts that they could allege to render the fourth cause of action sufficient and therefore sustains the demurrer without leave to amend.

ORDER

The court SUSTAINS
defendant General Motors, LLC's demurrer to plaintiffs Mark Benedetti and
Benedetti, LP's fourth cause of action without leave to amend.

The court
OVERRULES defendant General Motors, LLC's demurrer to plaintiffs Mark Benedetti
and Benedetti, LP's fifth cause of action.

The court orders defendant
General Motors, LLC to give notice of this ruling.

IT IS SO ORDERED.

DATED: August 24, 2026

Robert B. Broadbelt III

Judge of the Superior Court